

Summary
Board Bill Number 25 As Amended on the Floor
Introduced by Alderman Michael Browning
May 21, 2026

An ordinance pertaining to water rates; finding, determining and declaring that an increase in certain water rates is necessary for certain purposes, defining certain terms; repealing and replacing parts of Ordinance 71683 which are presently codified as Sections 23.06.130, 23.16.025, 23.16.040, 23.18.015, 23.18.070, 23.20.015, 23.20.020, 23.20.030, and 23.20.040 of the Revised Code of The City of St. Louis (“Revised Code”) and amending parts of Ordinance 71683 which are presently codified as Sections 23.16.020 and 23.04.220 of the Revised Code; all having as their subject water rates and charges; and containing an emergency provision.

**BOARD BILL NUMBER 25 AS AMENDED IN COMMITTEE INTRODUCED BY
ALDERMAN MICHAEL BROWNING
COSPONSORS: ALDERWOMAN ANNE SCHWEITZER/ALDERMAN MATT
DEVOTI/ALDERWOMAN COX ANTWI/ALDERWOMAN SHAMEEM CLARK-
HUBBARD/ALDERWOMAN DANIELA VELAZQUEZ**

1 An ordinance pertaining to water rates; finding, determining and declaring that an
2 increase in certain water rates is necessary for certain purposes; defining certain terms;
3 repealing and replacing parts of Ordinance 71683 which are presently codified as Sections
4 23.06.130, 23.16.025, 23.16.040, 23.18.015, 23.18.070, 23.20.015, 23.20.020, 23.20.030,
5 and 23.20.040 of the Revised Code of The City of St. Louis (“*Revised Code*”) and
6 amending parts of Ordinance 71683 which are presently codified as Sections 23.16.020
7 and 23.04.220 of the Revised Code; all having as their subject water rates and charges; and
8 containing an emergency provision.

9 **NOW THEREFORE, BE IT ORDAINED BY THE CITY OF ST. LOUIS AS**
10 **FOLLOWS:**

11 **SECTION ONE. Findings and Determinations.** It is hereby found, determined
12 and declared by the Board of Aldermen of the City of St. Louis that increases in certain
13 water rates as hereinafter provided are absolutely necessary to provide revenues sufficient
14 (a) for the maintenance and operation of the City’s waterworks and water facilities (b) to
15 pay the running expenses of the Water Division, (c) to pay when due the principal of,
16 redemption premium, if any, and interest on all outstanding St. Louis Water Revenue
17 Bonds series 2013, as required by Article XIII Section 11 of the St. Louis City Charter, (d)
18 to fund an operating reserve fund and (e) to satisfy the requirements of the Indenture of
19 Trust dated as of April 1, 1994, by and between the City and UMB, as amended and
20 supplemented.

1 **SECTION TWO. Repeals.** The following ordinance provisions are hereby
2 repealed effective July 1, 2026, or on the date this ordinance is approved by the Mayor or
3 adopted over the Mayor’s veto, whichever is later: Sections Three through Eight, Ten, and
4 Twelve of Ordinance 71683, parts of which are presently codified as Sections 23.06.130,
5 23.16.025, 23.16.040, 23.18.015, 23.18.070, 23.20.015, 23.20.020, 23.20.030, and
6 23.20.040 of the Revised Code.

7 **SECTION THREE. Definitions.** There is hereby enacted a new Section 23.02.60
8 of the Revised Code to read as follows:

9 Definitions and Inflation Adjustment. The following terms have the following
10 meanings in the places stated in this Title 23, Division I:

11 A. As used in Chapters 23.16, 23.18 and 23.20, “Implementation Date” means
12 July 1, 2026, or the effective date of this ordinance, whichever is later.

13 B. As used in the rate tables of Chapters 23.16, 23.18 and 23.20, “2026” shall
14 mean the time period beginning on the Implementation Date and ending on December 31,
15 2026.

16 C. As used in the rate tables of Chapters 23.16, 23.18 and 23.20, each
17 subsequent year shall mean the calendar year beginning on January 1 of such year.

18 D. As used in this Title 23, Division I, “Inflation Adjustment” shall mean,
19 notwithstanding the rates set forth in the rate tables of Chapters 23.16, 23.18 and 23.20, an
20 increase in rates on January 1 of each calendar year equal to (i) for a year in which the
21 annual change in CPI-U for the preceding calendar year, as published by the U.S. Bureau
22 of Labor Statistics (the “*CPI Change*”), exceeds 3%, the sum of the Proposed Increase
23 listed for such year in the rate tables of such Chapters and the amount by which the CPI

1 Change exceeds 3%; (ii) for a year in which the CPI Change is less than or equal to 3%,
2 the Proposed Increase listed for such year in the rate tables of such Chapters; or (iii) for
3 any year after 2032, “Inflation Adjustment” shall mean that notwithstanding the rate tables
4 of Chapters 23.16, 23.18 and 23.20, (a) each water rate and service charge specified in
5 Sections 5 to 11 of this ordinance shall increase automatically by the CPI Change for the
6 preceding calendar year is a positive number; and (b) in the event the CPI Change for the
7 preceding calendar year is not a positive number, the rate or service charge shall continue
8 without change for another calendar year.

9 **SECTION FOUR: Water Rate Review.** There is hereby enacted a new Section
10 23.02.70 of the Revised Code to read as follows:

11 As used in Title 23, “Water Rate Review” shall mean a reasonable opportunity for
12 interested stakeholders to meaningfully participate in the ratemaking process for the
13 water rates charged by the City’s Water Division, by providing questions, public
14 comment, and recommendations that can help design water rates to better match the
15 actual cost of service, thus enhancing public confidence in the adequacy and
16 reasonableness of those water rates. The structure of the Water Rate Review process may
17 be regulated by ordinance, and shall be posted on a dedicated Water Division webpage.

18 By June 30th, 2027, the Water Division will procure a Class Cost of Service Study that
19 analyzes how Water Division investments and expenses can be functionalized and
20 allocated to the City’s various water rates and rate components.

21 **SECTION FIVE. Flat Rates.** There is hereby enacted a new Section 23.16.040 of
22 the Revised Code to read as follows:

1 Flat Rates. Except as set forth in Chapter 23.20 of the Revised Code, the following
2 water rates for non-metered connections are hereby imposed, subject to the Inflation
3 Adjustment:

4 A. Flat Rate for Domestic Use.

	2026 (7/1/26)	2027 (1/1/27)	2028 (1/1/2028)	2029 (1/1/2029)	2030 (1/1/2030)	2031 (1/1/2031)	2032 (1/1/2032)
Proposed Increase	18%	18%	6%	6%	6%	5%	5%
Room charge, Each	6.57	7.76	8.22	8.71	9.24	9.70	10.18
Water Closet, Each	25.76	30.40	32.22	34.15	36.20	38.01	39.91
Baths, Each	21.61	25.49	27.02	28.65	30.36	31.88	33.48
Shower, Separate from bath, Each	21.61	25.49	27.02	28.65	30.36	31.88	33.48
Sprinkling charge, Linear Foot	0.44	0.52	0.55	0.58	0.61	0.64	0.68

5 B. Temporary Use of Flat Rate. In those cases where users are not
6 eligible for flat rates as enumerated in Section 23.16.060, Revised Code, and where existing
7 water service is unmetered as of the effective date of this ordinance, it shall be the duty of
8 the Water Commissioner, as soon as possible, to cause the installation or setting of the
9 required meter. In the interim, bills shall be rendered to these customers on the basis of the
10 appropriate flat rates imposed by this ordinance.

11 C. Swimming Pool Charge.

12 A flat water rate shall be applied where a swimming pool, pond or other
13 pool is found on the premises having a capacity of more than one hundred (100) cubic feet
14 and less than two thousand (2,000) cubic feet which are not metered under Section
15 23.16.060, Revised Code. Said flat rate shall be payable for periods of three (3) months in
16 advance as follows:

1 Swimming pool, pond or other pool having a capacity of more than 100 but less
2 than 501 cubic feet--\$35.47, subject to the Inflation Adjustment

3 Swimming pool, pond or other pool having a capacity of 501 but less than 1,001
4 cubic feet--\$49.65, subject to the Inflation Adjustment

5 Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501
6 cubic feet--\$63.86, subject to the Inflation Adjustment

7 Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000
8 cubic feet--\$78.03, subject to the Inflation Adjustment

9 D. Change to Metered Rate. Any user paying a flat rate shall have the
10 option to pay instead at metered rates as provided by Chapter 23.18 of the Revised Code.
11 Such option shall be exercised in writing on forms supplied by the Water Commissioner.
12 The user shall provide for the meter by having a meter box and set up installed on the
13 service in accordance with the current connection regulations, furnished and installed at
14 the user's own expense by a licensed plumber.

15 **SECTION SIX. Metered Rates.** There is hereby enacted a new Section 23.18.070
16 of the Revised Code to read as follows:

17 Metered Rates.

18 A. Water furnished to all metered connections shall be assessed for use per
19 three-month billing period, or less, at rates equal to the combined sum of a readiness-to-
20 serve charge and a quantity charge.

21 B. Except as set forth in Chapter 23.20 of the Revised Code, the readiness-to-
22 serve charge and quantity charge shall be as follows, subject to the Inflation Adjustment:

	2026 (7/1/26)	2027 (1/1/27)	2028 (1/1/2028)	2029 (1/1/2029)	2030 (1/1/2030)	2031 (1/1/2031)	2032 (1/1/2032)
Proposed Increase	18%	18%	6%	6%	6%	5%	5%
Readiness-to-serve charge							
5/8"	41.72	49.24	52.19	55.32	58.64	61.57	64.65
3/4"	48.63	57.38	60.82	64.47	68.34	71.76	75.35
1"	61.63	72.73	77.09	81.71	86.62	90.95	95.49
1 1/2"	89.14	105.18	111.49	118.18	125.27	131.54	138.11
2"	129.54	152.86	162.03	171.75	182.06	191.16	200.72
3"	251.16	296.37	314.15	333.00	352.98	370.63	389.17
4"	445.51	525.70	557.24	590.68	626.12	657.42	690.29
6"	850.57	1003.67	1063.89	1127.72	1195.39	1255.16	1317.91
8"	1296.06	1529.36	1621.12	1718.38	1821.49	1912.56	2008.19
10"	1782.12	2102.90	2229.07	2362.82	2504.59	2629.82	2761.31
Quantity Charge (Cubic feet per billing) Quantity Charge (per CCF per billing cycle)							
First 25,000, per CCF First 250 CCF	3.09	3.65	3.87	4.10	4.34	4.56	4.79
Next 1,975,000, per CCF Next 19,750 CCF	2.42	2.85	3.03	3.21	3.40	3.57	3.75
Over 2,000,000, per CCF Over 20,000 CCF	1.55	2.16	2.29	2.42	2.57	2.70	2.83

1 C. Should water be furnished through two (2) or more separate meters, the
2 readiness-to-serve charge shall be the combined total of the readiness-to-serve charge for
3 each meter. Should water be furnished through a single meter containing two (2) or more
4 metering elements, the readiness-to-serve charge shall be that for a single meter the size of
5 the largest metering element.

6 D. Should water be furnished through two (2) or more meters or through a
7 single meter with two (2) or more metering elements, the quantity charge shall be based on
8 the combined total of all water used as indicated by all registers.

1 E. The Water Division may, in the discretion of the Water Commissioner, enter
2 into separate written agreements with certain large metered users pursuant to which the
3 user agrees to pay a higher rate than that required by Paragraph B of this Section 23.18.070.

4 **SECTION SEVEN. Special Rates in Schools or Qualified Charitable**
5 **Institutions.** There is hereby enacted a new Section 23.20.020 of the Revised Code to read
6 as follows:

7 Special Rates in Schools or Qualified Charitable Institutions.

8 A. The readiness-to-serve charge and quantity charge for any public, parochial,
9 or inter-parochial school or Qualified Charitable Institution in the City shall be as follows,
10 subject to the Inflation Adjustment:

	2026 (7/1/26)	2027 (1/1/27)	2028 (1/1/2028)	2029 (1/1/2029)	2030 (1/1/2030)	2031 (1/1/2031)	2032 (1/1/2032)
Proposed Increase	18%	18%	6%	6%	6%	5%	5%
Readiness-to-serve charge							
5/8"	41.72	49.24	52.19	55.32	58.64	61.57	64.65
3/4"	48.63	57.38	60.82	64.47	68.34	71.76	75.35
1"	61.63	72.73	77.09	81.71	86.62	90.95	95.49
1 1/2"	89.14	105.18	111.49	118.18	125.27	131.54	138.11
2"	129.54	152.86	162.03	171.75	182.06	191.16	200.72
3"	251.16	296.37	314.15	333.00	352.98	370.63	389.17
4"	445.51	525.70	557.24	590.68	626.12	657.42	690.29
6"	850.57	1003.67	1063.89	1127.72	1195.39	1255.16	1317.91
8"	1296.06	1529.36	1621.12	1718.38	1821.49	1912.56	2008.19
10"	1782.12	2102.90	2229.07	2362.82	2504.59	2629.82	2761.31
Quantity Charge (Cubic feet per billing)	Quantity Charge (per CCF per billing cycle)						

Charitable Institutions	1.63	1.92	2.04	2.16	2.29	2.40	2.52
School Rate	1.63*	1.92	2.04	2.16	2.29	2.40	2.52

** School Rate is adjusted to align with the Charitable Institution Rate.*

1 B. As used in this Section 23.20.020, “Qualified Charitable Institution” shall
2 mean an institution which has made written application to the Water Commissioner, signed
3 by its president, secretary or managing officer, asking for a special charity rate, and stating
4 that free service is furnished to not less than ten (10) percent of its clients, and giving
5 special details of the management as are necessary to show the philanthropic nature of the
6 institution, which application has been approved by the Water Commissioner for the
7 reduced rates set forth in Paragraph A of this Section 23.20.020.

8 **SECTION EIGHT. Special Rates in Hospitals, Zoological Parks, and**
9 **Museums.** There is hereby enacted a new Section 23.20.030 of the Revised Code to read
10 as follows:

11 Special Rates in Hospitals, Zoological Parks, and Museums.

12 A. The readiness-to-serve charge and quantity charge for any hospital, public library,
13 art museum of the Art Museum subdistrict of the Metropolitan Zoological Park and
14 Museum District of the City of St. Louis and the County of St. Louis (“MSD”), or
15 zoological parks of the Zoological subdistrict of MSD in the City shall be as
16 follows, subject to the Inflation Adjustment:

	2026** (7/1/26)	2027 (1/1/27)	2028 (1/1/2028)	2029 (1/1/2029)	2030 (1/1/2030)	2031 (1/1/2031)	2032 (1/1/2032)
Proposed Increase	18%	18%	6%	6%	6%	5%	5%
Readiness-to-serve charge							

5/8"	41.72	49.24	52.19	55.32	58.64	61.57	64.65
3/4"	48.63	57.38	60.82	64.47	68.34	71.76	75.35
1"	61.63	72.73	77.09	81.71	86.62	90.95	95.49
1 1/2"	89.14	105.18	111.49	118.18	125.27	131.54	138.11
2"	129.54	152.86	162.03	171.75	182.06	191.16	200.72
3"	251.16	296.37	314.15	333.00	352.98	370.63	389.17
4"	445.51	525.70	557.24	590.68	626.12	657.42	690.29
6"	850.57	1003.67	1063.89	1127.72	1195.39	1255.16	1317.91
8"	1296.06	1529.36	1621.12	1718.38	1821.49	1912.56	2008.19
10"	1782.12	2102.90	2229.07	2362.82	2504.59	2629.82	2761.31
Quantity Charge (Cubic feet per billing) Quantity Charge (per CCF per billing cycle)							
First 25,000, per CCF First 250 CCF	1.63**	3.65	3.87	4.10	4.34	4.56	4.79
Next 1,975,000, per CCF Next 19,750 CCF	1.63**	2.85	3.03	3.21	3.40	3.57	3.75
Over 2,000,000, per CCF Over 20,000 CCF	1.63**	2.16	2.29	2.42	2.57	2.70	2.83

***Hospitals, Zoological Parks, and Museums special rate classification will be eliminated effective January 1, 2027.*

1 **SECTION NINE. Affordability Rates.** There is hereby enacted a new Section

2 23.20.040 of the Revised Code to read as follows:

3 Affordability Rates.

4 A. The following water rates for non-metered connections are hereby imposed

5 for Qualified Affordability Customers, subject to the Inflation Adjustment:

	2026 (7/1/26)	2027 (1/1/27)	2028 (1/1/2028)	2029 (1/1/2029)	2030 (1/1/2030)	2031 (1/1/2031)	2032 (1/1/2032)
Proposed Increase	-	18%	6%	6%	6%	5%	5%

Room charge, Each	3.29	3.88	4.11	4.36	4.62	4.85	5.09
Water Closet, Each	12.88	15.20	16.11	17.08	18.10	19.01	19.96
Baths, Each	10.80	12.75	13.51	14.32	15.18	15.94	16.74
Shower, Separate from bath, Each	10.80	12.75	13.51	14.32	15.18	15.94	16.74
Sprinkling charge, Linear Foot	0.22	0.26	0.27	0.29	0.31	0.32	0.34

1 B. The readiness-to-serve charge and quantity charge for any Qualified

2 Affordability Customer shall be as follows, subject to the Inflation Adjustment:

	2026** (7/1/26)	2027 (1/1/27)	2028 (1/1/2028)	2029 (1/1/2029)	2030 (1/1/2030)	2031 (1/1/2031)	2032 (1/1/2032)
Proposed Increase	-	18%	6%	6%	6%	5%	5%
Readiness-to-serve charge							
5/8"	20.86	24.62	26.09	27.66	29.32	30.79	32.33
3/4"	24.31	28.69	30.41	32.24	34.17	35.88	37.67
1"	30.82	36.36	38.54	40.86	43.31	45.47	47.75
1 1/2"	44.57	52.59	55.75	59.09	62.64	65.77	69.06
2"	64.77	76.43	81.01	85.88	91.03	95.58	100.36
3"	125.58	148.19	157.08	166.50	176.49	185.32	194.58
4"	222.75	262.85	278.62	295.34	313.06	328.71	345.15
6"	425.28	501.83	531.94	563.86	597.69	627.58	658.96
8"	648.03	764.68	810.56	859.19	910.74	956.28	1004.10
10"	891.06	1051.45	1114.54	1181.41	1252.29	1314.91	1380.65
Quantity Charge (Cubic feet per billing)	Quantity Charge (per CCF per billing cycle)						
First 25,000, per CCF First 250 CCF	1.55	1.82	1.93	2.05	2.17	2.28	2.40
Next 1,975,000, per CCF Next 19,750 CCF	2.42	2.85	3.03	3.21	3.40	3.57	3.75

Over 2,000,000, per CCF 20,000 CCF	Over	1.83	2.16	2.29	2.42	2.57	2.70	2.83
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1 C. As used in this Section 23.20.040, “Qualified Affordability Customer” shall
2 mean a residential customer who makes a written application to the Water Commissioner,
3 which application has been approved by the Water Commissioner for the reduced rates set
4 forth in Paragraph A or B of this Section 23.20.040, as applicable, to be known as the
5 “Affordability Rate.”

6 D. Eligibility for status as a Qualified Affordability Customer shall be
7 determined based on criteria established by the Water Commissioner, which may include,
8 but are not limited to: household income; age of applicant; demonstrated eligibility from
9 past assistance programs; and/or documented impact from a natural or man-made disaster.

10 E. To remain eligible for use of the Affordability Rate, a Qualified
11 Affordability Customer must be current in their Water Division account. Customers with
12 delinquent balances may be required to enter and remain current on an approved repayment
13 agreement as a condition of eligibility or continued participation. Failure to comply with
14 such requirements may result in suspension or termination of Qualified Affordability
15 Customer status. A customer with a delinquent balance that is actively enrolled in and
16 current with a repayment plan shall be deemed to be current in their Water Division account
17 for the purposes of this Section 23.20.040.

18 F. Any Qualified Affordability Customer or person applying for such status
19 who knowingly provides false, misleading, or incomplete information or otherwise
20 engages in fraud or abuse with respect to the Affordability Rate, as determined by the Water
21 Commissioner, shall immediately lose status as a Qualified Affordability Customer and be
22 ineligible to apply for such status in the future. The Water Commissioner is authorized to

1 retroactively recover the difference between the Affordability Rate and the standard water
2 rate for any period in which the Affordability Rate was improperly obtained, in addition to
3 any other remedies permitted by law or ordinance.

4 G. The Water Commissioner may require periodic recertification of eligibility
5 for Qualified Affordability Customer status. Continued participation is conditioned upon
6 ongoing compliance with Water Division requirements. The Water Commissioner may
7 suspend or revoke participation for failure to meet eligibility criteria, comply with
8 recertification requirements, or adhere to the program established under this Section
9 23.20.040.

10 **SECTION TEN. Water turn-on Service Charge.** Section Nine of Ordinance
11 71683, codified at Section 23.16.020 of the Revised Code, is hereby amended by replacing
12 the figure “\$40.00” with the figure “\$50.00.”

13 **SECTION ELEVEN. Shutoff for Delinquency.** There is hereby enacted a new
14 Section 23.06.130 of the Revised Code to read as follows:

15 Shutoff for Delinquency. The Collector of Revenue shall furnish the Water
16 Commissioner a written list each day of all water bills paid the previous day. The Water
17 Commissioner shall shut off the water from all premises for the nonpayment of delinquent
18 bills. Water shall not again be furnished thereto until all outstanding obligations for water
19 supplied to such premises shall have been paid in full, or the property owner or account
20 holder has entered into and is in compliance with an approved repayment agreement with
21 the Water Division or the Collector of Revenue, and a charge of \$75.00 has been paid in
22 advance for turning on such water, subject to the Inflation Adjustment.

1 **SECTION TWELVE. Fire Protection Connections.** Section Eleven of
2 Ordinance 71683, codified at Section 23.04.220 of the Revised Code, is hereby amended
3 by replacing the phrase “Two Hundred Eighty-Eight Dollars (\$288.00)” with the phrase
4 “Two Hundred Ninety-Seven Dollars (\$297).”

5 **SECTION THIRTEEN. Annual Update.** There is hereby enacted a new Section
6 23.02.070 of the Revised Code to read as follows:

7 Annual Update. The Water Division shall submit an annual update to the Clerk of
8 the Board of Aldermen no later than October 1 of each calendar year and shall present the
9 report at a meeting of the Board of Aldermen's Public Infrastructure and Utilities
10 Committee (or such other committee to which, pursuant to the rules of the Board of
11 Aldermen, bills affecting matters that are the subject of this Ordinance are assigned) during
12 that month of May. The Water Division’s update shall include a list of projects with their
13 current status and progress. It shall include any other related documents as may be
14 requested by the Public Infrastructure and Utilities Committee. The report shall be posted
15 19 on the Water Division's website by October 1 of each calendar year.

16 **SECTION FOURTEEN. Emergency.** This ordinance, being deemed necessary
17 for the immediate preservation of the public peace and safety, is declared to be an
18 emergency ordinance under Article IV, Sections 19 and 20 of the Charter of the City of St.
19 Louis, and it shall take effect and be in full force immediately upon its passage and approval
20 by the Mayor or its adoption over her veto.

ORDINANCE 71683

BOARD BILL NUMBER 49 COMMITTEE SUBSTITUTE AS AMENDED INTRODUCED BY ALDERWOMAN ANNE SCHWEITZER

1 An ordinance pertaining to water rates; finding, determining and declaring that an increase
2 in certain water rates is necessary for certain purposes; defining certain terms; repealing
3 **Ordinance Number 68694**, which is presently codified as Sections 23.04.220, 23.06.130,
4 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.020, 23.20.030, and 23.20.040, Revised
5 Code of The City of St. Louis (“*Revised Code*”) and repealing Section 3 of **Ordinance**
6 **Number 63136**, presently codified as Section 23.20.015 of the Revised Code; enacting
7 twelve new sections relating to the same subject; and containing an emergency provision.

BE IT ORDAINED BY THE CITY OF ST. LOUIS AS FOLLOWS:

9 **SECTION ONE.** Findings and Determinations. It is hereby found, determined and
10 declared by the Board of Aldermen of the City of St. Louis that increases in certain water
11 rates as hereinafter provided are absolutely necessary to provide revenues sufficient (a) for
12 the maintenance and operation of the City's waterworks and water facilities (b) to pay the
13 running expenses of the Water Division, (c) to pay when due the principal of, redemption
14 premium, if any, and interest on all outstanding St. Louis Water Revenue Bonds series
15 2013, as required by Article XIII Section 11 of the St. Louis City Charter, (d) to fund an
16 operating reserve fund and (e) to satisfy the requirements of the Indenture of Trust dated
17 as of April 1, 1994, by and between the City and UMB (the "*Indenture*"), as amended and
18 supplemented.

19 **SECTION TWO.** Repeals. The following ordinance provisions are hereby repealed
20 effective July 1, 2023, or on the effective date of this ordinance, whichever is later:

1 **Ordinance Number 68694** in its entirety, presently codified as Sections 23.04.220,
2 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.020, 23.20.030, and
3 23.20.040; and Section 3 of **Ordinance Number 63136**, presently codified at Section
4 23.20.015 of the Revised Code.

5 **SECTION THREE.** There is hereby enacted a new ordinance to be codified at Sections
6 23.16.025, 23.18.15 and 23.20.015 of the Revised Code to be and read as follows:

7 Definitions and Inflation Adjustment.

8 A. “Implementation Date” shall mean the Date as of which the rates of this
9 Chapter are effective, which shall be July 1, 2023, or the effective date of this ordinance,
10 whichever is later.

11 B. “First Year” shall mean the time period beginning on the Implementation
12 Date and ending on December 31, 2023.

13 C. “Second and Third Years” shall mean the calendar years beginning on
14 January 1, 2024 and ending December 31, 2025.

15 D. “Inflation Adjustment” shall mean that notwithstanding the rates enacted
16 for the First Year and any rates enacted for the Second and Third Years, (a) on January 1
17 of each calendar year from January 1, 2026 and thereafter each water rate and service
18 charge specified in Sections 5 to 11 of this ordinance shall increase automatically by the
19 annual change in CPI-U for the preceding calendar year as published by the U.S. Bureau
20 of Labor Statistics in the event that the CPI-U for the preceding calendar year is a positive
21 number; and (b) in the event the CPI-U for the preceding calendar year is not a positive
22 number, the rate or service charge shall continue without change for another calendar year.

1 **SECTION FOUR.** There is hereby enacted a new Section 23.16.040 of the Revised Code
2 to be and read as follows:

3 Flat Rates. The following rates and charges are hereby imposed, subject to the
4 Inflation Adjustment:

5 A. Flat Rate for Domestic Use.

6 1. For the use of water for domestic family residence, flat or apartment
7 purposes, for periods of three months in advance:

8 FIRST YEAR

9 Room charge, each..... \$4.51

10 Water closet, each.....\$17.66

11 Baths, each..... \$14.82

12 Shower, separate from bath, each..... \$14.82

13 SECOND AND THIRD YEARS

14 Room charge, each..... \$5.41

15 Water closet, each.....\$21.19

16 Baths, each..... \$17.78

17 Shower, separate from bath, each..... \$17.78

18 2. Sprinkling charge of \$0.30 per front foot shall be assessed each
19 three-month billing period for lawn sprinkling and other outside uses beginning with the
20 Implementation Date of this ordinance.

21 Sprinkling charge of \$0.36 per front foot shall be assessed each three-month
22 billing period for lawn sprinkling and other outside uses for the Second and Third Years.

1 B. Temporary Use of Flat Rate. In those cases where users are not eligible for
2 flat rates as enumerated in Section 23.16.060, Revised Code, and where existing water
3 service is unmetered as of the effective date of this ordinance, it shall be the duty of the
4 Water Commissioner, as soon as possible, to cause the installation or setting of the required
5 meter. In the interim, bills shall be rendered to these customers on the basis of the
6 appropriate flat rates imposed by this ordinance.

7 C. Swimming Pool Charge.

8 1. A flat water rate shall be applied where a swimming pool, pond or
9 other pool is found on the premises having a capacity of more than one hundred (100) cubic
10 feet and less than two thousand (2,000) cubic feet which are not metered under Section
11 23.16.060, Revised Code. Said flat rate shall be payable for periods of three (3) months in
12 advance as follows:

13 Swimming pool, pond or other pool having a capacity of more than 100 but less
14 than 501 cubic feet--\$33.34

15 Swimming pool, pond or other pool having a capacity of 501 but less than 1,001
16 cubic feet--\$46.66

17 Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501
18 cubic feet--\$60.02

19 Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000
20 cubic feet--\$73.34

21 2. After paying the flat rates imposed under the foregoing Subsection
22 5(c)1 or Section 5(c)1 of **Ordinance Number 68694**, or both, for a minimum of one (1)

1 year, the user making said payments shall have the option to pay at meter rates as provided
2 by Chapter 23.18, Revised Code. Such options shall be exercised in writing on forms
3 supplied by the Water Commissioner. The user shall provide for the meter by having a
4 meter box and set up installed on the service in accordance with Section 23.04.210, Revised
5 Code, at the user's own expense.

6 **SECTION FIVE.** There is hereby enacted a new Section 23.18.070 to be and read as
7 follows:

8 Metered Rates. The following rates are hereby imposed, subject to the Inflation
9 Adjustment:

10 A. Water furnished to all metered connections shall be assessed for use per
11 three-month billing period, or less, at rates equal to the combined sum of a readiness-to-
12 serve charge and a quantity charge.

13 B. The readiness-to-serve charge shall be determined by the size of the meter
14 and shall be as follows:

15 FIRST YEAR

16 METER

17	5/8".....	\$28.61
18	3/4".....	\$33.34
19	1".....	\$42.26
20	1½".....	\$61.12
21	2".....	\$88.82
22	3".....	\$172.21

1	4".....	\$305.46
2	6".....	\$583.19
3	8".....	\$888.64
4	10".....	\$1,221.90

5 SECOND AND THIRD YEARS

6 METER

7	5/8".....	\$34.33
8	3/4".....	\$40.01
9	1".....	\$50.71
10	1½".....	\$73.34
11	2".....	\$106.58
12	3".....	\$206.65
13	4".....	\$366.55
14	6".....	\$699.83
15	8".....	\$1066.37
16	10".....	\$1466.28

17 C. Should water be furnished through two (2) or more separate meters, the
18 readiness-to-serve charge shall be the combined total of the readiness-to-serve charge for
19 each meter. Should water be furnished through a single meter containing two (2) or more
20 metering elements, the readiness-to-serve charge shall be that for a single meter the size of
21 the largest metering element.

22 D. The quantity charge shall be at the following rates:

1 FIRST YEAR

- 2 (i) For first 25,000 cubic feet per billing, per 100 cubic feet, \$2.12
- 3 (ii) For next 1,975,000 cubic feet per billing, per 100 cubic feet, \$1.66
- 4 (iii) Over 2,000,000 cubic feet per billing, per 100 cubic feet, \$1.25

5 SECOND AND THIRD YEARS

- 6 (i) For first 25,000 cubic feet per billing, per 100 cubic feet, \$2.54
- 7 (ii) For next 1,975,000 cubic feet per billing, per 100 cubic feet, \$1.99
- 8 (iii) Over 2,000,000 cubic feet per billing, per 100 cubic feet, \$1.50

9 E. Should water be furnished through two (2) or more meters or through a

10 single meter with two (2) or more metering elements, the quantity charge shall be based on

11 the combined total of all water used as indicated by all registers.

12 **SECTION SIX.** There is hereby enacted a new Section 23.20.020 to be and read as

13 follows: Special Rates in Hospitals or Charitable Institutions.

14 The following rates are hereby imposed, subject to the Inflation Adjustment:

15 A. The quantity charge for the use of water by any hospital or charitable

16 institution in the City which shall make written application to the Water Commissioner,

17 signed by its president, secretary or managing officer, asking for a special charity rate, and

18 stating that free service is furnished to not less than ten (10) percent of its patients, members

19 or inmates, and giving special details of the management as are necessary to show the

20 philanthropic nature of the institution shall, if approved by the Water Commissioner, be

1 assessed for the water used in the institution at a special rate of \$1.12 per 100 cubic feet
2 for the First Year, \$1.34 per 100 cubic feet for the Second and Third Years.

3 B. In addition to the quantity charge, there shall be assessed each billing
4 period a readiness-to-serve charge for each meter in accordance with the schedule set forth
5 in Section Five of this ordinance.

6 **SECTION SEVEN.** There is hereby enacted a new Section 23.20.030 to be and read as
7 follows:

8 School Rates.

9 The following rates are hereby imposed, subject to the Inflation Adjustment:

10 A. The quantity charge for the use of water by any public, parochial, inter-
11 parochial schools, public libraries, and art museum of the Art Museum subdistrict of the
12 Metropolitan Zoological Park and Museum District of the City of St. Louis and the County
13 of St. Louis shall be assessed for the water used in the institution at a special rate of \$1.25
14 per 100 cubic feet for the First Year, \$1.50 per 100 cubic feet for the Second and Third
15 Years.

16 B. In addition to the quantity charge, there shall be assessed each billing period
17 a readiness-to-serve charge for each meter in accordance with the schedule set forth in
18 Section Five of this ordinance.

19 **SECTION EIGHT.** There is hereby enacted a new Section 23.20.040 to be and read as
20 follows:

21 Zoological Parks.

22 The following rates are hereby imposed, subject to the Inflation Adjustment:

1 A. The quantity charge for the use of water by zoological parks of the
2 Zoological subdistrict of the Metropolitan Zoological Park and Museum District of the City
3 of St. Louis and the County of St. Louis shall be assessed for the water used in the
4 institution at a special rate of \$1.12 per 100 cubic feet for the First Year, \$1.34 per 100
5 cubic feet for the Second and Third Years.

6 B. In addition to the quantity charge, there shall be assessed each billing period
7 a readiness-to-serve charge for each meter in accordance with the schedule set forth in
8 Section Five of this ordinance.

9 **SECTION NINE.** There is hereby enacted a new Section 23.16.020 to be and read as
10 follows:

11 Water turn-on Service Charge. A service charge equal to \$40.00 shall be collected in
12 advance for turning on water to new flat rate and meter accounts, subject to the Inflation
13 Adjustment.

14 **SECTION TEN.** There is hereby enacted a new Section 23.16.130 to be and read as
15 follows:

16 Shutoff for Delinquency. The Collector of Revenue shall furnish the Water Commissioner
17 a written list each day of all water bills paid the previous day. The Water Commissioner
18 shall shut off the water from all premises for the nonpayment of delinquent bills. Water
19 shall not again be furnished thereto until all outstanding obligations for water supplied to
20 such premises shall have been paid in full and a charge of \$50.00 has been paid in advance
21 for turning on such water, subject to the Inflation Adjustment.

1 **SECTION ELEVEN.** There is hereby enacted a new Section 23.04.220 to be and read as
2 follows:

3 Fire Protection Connections.

4 A. All new and existing installations for private sprinkler type protection shall
5 be provided with a suitable control valve just inside the building or property line.
6 Connections serving automatic sprinkler equipment must be equipped with an approved
7 type of water flow alarm service of any of local and central station alarms, local alarms and
8 watchman with watch service, or approved outdoor local alarms where there is no
9 watchman on the premises. Water through these connections shall be used to extinguish
10 fires only and the use of water for any other purpose is expressly prohibited. No meter shall
11 be required on connections used to supply private fire protection systems with sprinkler
12 equipment only. Where new and existing connections for private fire protection supply
13 standpipe and hose rack systems or private fire hydrants are or have been installed, a
14 detector check valve with bypass meter and vault shall be installed at the expense of the
15 applicant and if it is found that water is being used for purposes other than the
16 extinguishment of fires or testing, the Water Commissioner shall install a fire service meter
17 and vault at the expense of the owner or occupant. Prior to installation the Water
18 Commissioner shall require a deposit for the estimated cost of all fire service meter and
19 vault installations within ten (10) days of notification or the water shall be shut off from
20 the water main and the Insurance Services Office of Missouri and the Fire Marshal notified
21 of this action. A service charge of Two Hundred Eighty-Eight Dollars (\$288.00), subject
22 to the Inflation Adjustment, shall be assessed against each connection made with the mains

1 of the Water Division for all new and existing private fire protection connections used to
2 supply sprinkler equipment only and against all new and existing private fire protection
3 connections regulated by detector check valves with bypass meters. Should water in excess
4 of that required for the emergency extinguishment of fires be used through any private fire
5 protection system regulated by a detector check valve with bypass meter then such water
6 use shall be assessed a quantity charge, but not the readiness-to-serve charge, at the rates
7 set forth in Section Six of this ordinance. Private fire protection connections regulated by
8 fire service meters shall be assessed the regular meter rates as set forth in Section Six of
9 this ordinance. For any private fire protection connection regulated either by a detector
10 check valve with bypass meter or by a fire meter an adjustment will be made for water used
11 for the emergency extinguishment of fire where such use is claimed and certified to the
12 Water Commissioner by the occupant or owner. In cases where these bills are not paid
13 within thirty (30) days, the Water Commissioner shall cause the connection to be shut off
14 and notify the Insurance Services Office of Missouri and the Fire Marshal of this action.

15 B. Sprinkler protection shall be considered a piping system with nationally
16 recognized testing laboratory approved sprinkler heads attached. Stand-pipe and hose racks
17 systems shall be considered any arrangements of piping whereby hoses for fighting fires
18 can be attached to the pipes and used either by the occupant or owner or the Fire
19 Department. A fire hydrant shall be considered any water connection with an outlet at least
20 two and one-half (2 1/2) inches inside diameter and provided with the same size threads
21 used by the St. Louis Fire Department. Two (2) inch or smaller fire protection connections

1 shall be used only when approved by the Fire Marshal and by the Water Commissioner and
2 no water for purposes other than fire extinguishment shall be taken from such connections.

3 C. Limited service sprinklers attached to domestic service lines shall conform
4 to the following minimum requirements. One (1) sprinkler head per fire area when supplied
5 from a one (1) inch domestic service. Two (2) sprinkler heads per fire area when supplied
6 from a one-and-one-half (1 1/2) inch domestic service. Four (4) sprinkler heads per fire
7 area when supplied from a two (2) inch domestic service. A fire area shall be a confined
8 area which may contain hazardous substances. Limited service sprinklers in any one (1)
9 building shall be limited to a maximum of twenty (20) sprinklers. No sprinkler supply lines
10 shall be attached to the domestic service before the domestic water meter.

11 **SECTION TWELVE.** The Water Division shall submit an annual update to the Clerk of
12 the Board of Aldermen no later than May 1 of each calendar year and shall present the
13 report at a meeting of the Board of Aldermen's Public Infrastructure and
14 Utilities Committee (or such other committee to which, pursuant to the rules of the Board
15 of Aldermen, bills affecting matters that are the subject of this Ordinance are assigned)
16 during that month of May. The Water Division's update shall include a list of projects with
17 their current status and progress. It shall include any other related documents as may be
18 requested by the Public Infrastructure and Utilities Committee. The report shall be posted
19 on the Water Division's website by May 1 of each calendar year.

20 **SECTION THIRTEEN.** Emergency. This being an ordinance necessary for the
21 preservation of the public peace, health, and safety, it is hereby declared to be an emergency
22 ordinance under Article IV, Sections 19 and 20 of the Charter of the City of St. Louis, and

- 1 it shall take effect and be in full force immediately upon its passage and approval by the
- 2 Mayor or its adoption over their veto.

ORDINANCE #68694
Board Bill No. 100
Committee Substitute

An ordinance pertaining to water rates; finding, determining and declaring that an increase in certain water rates is necessary for certain purposes; defining certain terms; repealing Ordinance 67919, parts of which are presently codified as Sections 23.04.220, 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.020, 23.20.030, and 23.20.040, Revised Code, City of St. Louis 1994, Anno. ("Revised Code"), all having as their subject water rates and charges; enacting in lieu thereof nine new sections relating to the same subject; with an emergency provision.

NOW THEREFORE, BE IT ORDAINED BY THE CITY OF ST. LOUIS AS FOLLOWS:

Section 1. Findings and Determinations. It is hereby found, determined and declared by the Board of Aldermen of the City of St. Louis that increases in certain water rates as hereinafter provided are absolutely necessary to provide revenues sufficient (a) for the maintenance and operation of the City's waterworks and water facilities (b) to pay the running expenses of the Water Division, (c) to pay when due the principal of, redemption premium, if any, and interest on all outstanding St. Louis Water Revenue Refunding Bonds, Series 1998, as required by Article XIII Section 11 of the St. Louis City Charter, (d) to comply with the requirements of the Indenture of Trust dated as of April 1, 1994, by and between the City and Mark Twain Bank (the "*Indenture*"), and (e) to fund an operating reserve fund.

Section 2. Repeals. The following ordinance provisions are hereby repealed effective on the Implementation Date, as hereinafter defined, or on the effective date of this ordinance, whichever is later: Ordinance 67919, parts of which are presently codified as Sections 23.04.220, 23.06.130, 23.16.020, 23.16.025, 23.16.040, 23.18.070, 23.20.020, 23.20.030, and 23.20.040, Revised Code.

Section 3. Definitions. As used in this Ordinance, "Implementation Date" means the time period beginning on July 1, 2010, or the effective date of this ordinance whichever is later.

Section 4. Effective Date of Rates and Changes. The rates and charges imposed by Sections 5 to 12, inclusive, of this ordinance shall be effective on the Implementation Date.

Section 5. Flat Rates. The following water rates are hereby imposed:

(a) Flat rate for domestic use.

For the use of water for domestic family residence, flat or apartment purposes, for periods of three months in advance:

Room charge, each..... \$ 3.76

Water closet, each.....\$14.72

Baths, each..... \$ 12.35

Shower, separate from bath, each..... \$ 12.35

Sprinkling charge of \$.25 per front foot shall be assessed each three month billing period for lawn sprinkling and other outside uses beginning with the Implementation Date of this ordinance.

(b) Temporary use of flat rate.

In those cases where users are not eligible for flat rates as enumerated in Section 23.16.060, Revised Code, and where existing water service is unmetered as of the effective date of this ordinance, it shall be the duty of the Water Commissioner, as soon as possible, to cause the installation or setting of the required meter. In the interim, bills shall be rendered to these customers on the basis of the appropriate flat rates imposed by this ordinance.

(b) Swimming pool charge.

A flat water rate shall be applied where a swimming pool, pond or other pool is found on the premises having a capacity of more than one hundred (100) cubic feet and less than two thousand (2,000) cubic feet which are not metered under Section 23.16.060, Revised Code. Said flat rate shall be payable for periods of three (3) months in advance as follows:

Swimming pool, pond or other pool having a capacity of more than 100 but less than 501 cubic feet--\$23.15

Swimming pool, pond or other pool having a capacity of 501 but less than 1,001 cubic feet--\$32.40

Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501 cubic feet--\$41.68

Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000 cubic feet--\$50.93

After paying the flat rates imposed under the foregoing Subsection (c)1 or Section 5(c)1 of Ordinance 67919, or both, for a minimum of one (1) year, the user making said payments shall have the option to pay at meter rates as provided by Chapter 23.18, Revised Code. Such options shall be exercised in writing on forms supplied by the Water Commissioner. The user shall provide for the meter by having a meter box and set up installed on the service in accordance with Section 23.04.210, Revised Code, at the user's own expense.

Section 6. Metered Rates.

(a) Water furnished to all metered connections shall be assessed for use per three-month billing period, or less, at rates equal to the combined sum of a readiness-to-serve charge and a quantity charge.

(b) The readiness-to-serve charge shall be determined by the size of the meter and shall be as follows:

5/8"	\$ 23.84
3/4"	27.78
1"	35.22
1½"	50.93
2"	74.02
3"	143.51
4"	254.55
6"	485.99
8"	740.53
10"	1,018.25

(c) Should water be furnished through two (2) or more separate meters, the readiness-to-serve charge shall be the combined total of the readiness-to-serve charge for each meter. Should water be furnished through a single meter containing two (2) or more metering elements, the readiness-to-serve charge shall be that for a single meter the size of the largest metering element.

(d) The quantity charge shall be at the following rates:

(i) For first 25,000 cubic feet per billing, per 100 cubic feet, \$1.77.

(ii) For next 1,975,000 cubic feet per billing, per 100 cubic feet, \$1.38.

(iii) Over 2,000,000 cubic feet per billing, per 100 cubic feet, \$1.04.

(e) Should water be furnished through two (2) or more meters or through a single meter with two (2) or more metering elements, the quantity charge shall be based on the combined total of all water used as indicated by all registers.

Section 7. Special Rates in Hospitals or Charitable Institutions.

(a) The quantity charge for the use of water by any hospital or charitable institution in the City which shall make written application to the Water Commissioner, signed by its president, secretary or managing officer, asking for a special charity rate, and stating that free service is furnished to not less than ten (10) percent of its patients, members or inmates, and giving special details of the management as are necessary to show the philanthropic nature of the institution shall, if approved by the Water Commissioner, be assessed for the water used in the institution at a special rate of \$0.93 per 100 cubic feet.

(b) In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 6 of this ordinance.

Section 8. School Rates.

(a) The quantity charge for the use of water by any public, parochial, inter-parochial schools, public libraries, and art museum of the Art Museum subdistrict of the Metropolitan Zoological Park and Museum District of the City of St. Louis and the County of St. Louis shall be assessed for the water used in the institution at a special rate of \$1.04 per 100 cubic feet. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section Six of this ordinance.

Section 9. Zoological Parks.

(a) The quantity charge for the use of water by zoological parks of the Zoological subdistrict of the Metropolitan Zoological Park and Museum District of the City of St. Louis and the County of St. Louis shall be assessed for the water used in the institution at a special rate of \$0.93 per 100 cubic feet.

(b) In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section Six of this ordinance.

Section 10. Water turn-on Service Charge.

A service charge equal to the then current Section 11 Shutoff for Delinquency rate shall be collected in advance for turning on water to new flat rate and meter accounts.

Section 11. Shutoff for Delinquency.

The Collector of Revenue shall furnish the Water Commissioner a written list each day of all water bills paid the previous day. The Water Commissioner shall shut off the water from all premises for the nonpayment of delinquent bills. Water shall not again be furnished thereto until all outstanding obligations for water supplied to such premises shall have been paid in full and a charge of \$30.00 has been paid in advance for turning on such water.

Fire Protection Connections.

(a) All new and existing installations for private sprinkler type protection shall be provided with a suitable control valve just inside the building or property line. Connections serving automatic sprinkler equipment must be equipped with an approved type of water flow alarm service of any of local and central station alarms, local alarms and watchman with watch service, or approved outdoor local alarms where there is no watchman on the premises. Water through these connections shall be used to extinguish fires only and the use of water for any other purpose is expressly prohibited. No meter shall be required on connections used to supply private fire protection systems with sprinkler equipment only. Where new and existing connections for private fire protection supply standpipe and hose rack systems or private fire hydrants are or have been installed, a detector check valve with bypass meter and vault shall be installed at the expense of the applicant and if it is found that water is being used for purposes other

than the extinguishment of fires or testing, the Water Commissioner shall install a fire service meter and vault at the expense of the owner or occupant. Prior to installation the Water Commissioner shall require a deposit for the estimated cost of all fire service meter and vault installations within ten (10) days of notification or the water shall be shut off from the water main and the Insurance Services Office of Missouri and the Fire Marshal notified of this action. A service charge of One Hundred Sixty-Eight dollars (\$168.00) shall be assessed against each connection made with the mains of the Water Division for all new and existing private fire protection connections used to supply sprinkler equipment only and against all new and existing private fire protection connections regulated by detector check valves with bypass meters. Should water in excess of that required for the emergency extinguishment of fires be used through any private fire protection system regulated by a detector check valve with bypass meter then such water use shall be assessed a quantity charge, but not the readiness-to-serve charge, at the rates set forth in Section Six of this ordinance. Private fire protection connections regulated by fire service meters shall be assessed the regular meter rates as set forth in Section Six of this ordinance. For any private fire protection connection regulated either by a detector check valve with bypass meter or by a fire meter an adjustment will be made for water used for the emergency extinguishment of fire where such use is claimed and certified to the Water Commissioner by the occupant or owner. In cases where these bills are not paid within thirty (30) days, the Water Commissioner shall cause the connection to be shut off and notify the Insurance Services Office of Missouri and the Fire Marshal of this action.

(b) Sprinkler protection shall be considered a piping system with nationally recognized testing laboratory approved sprinkler heads attached. Stand-pipe and hose racks systems shall be considered any arrangements of piping whereby hoses for fighting fires can be attached to the pipes and used either by the occupant or owner or the Fire Department. A fire hydrant shall be considered any water connection with an outlet at least two and one-half (2 1/2) inches inside diameter and provided with the same size threads used by the St. Louis Fire Department. Two (2) inch or smaller fire protection connections shall be used only when approved by the Fire Marshal and by the Water Commissioner and no water for purposes other than fire extinguishment shall be taken from such connections.

(c) Limited service sprinklers attached to domestic service lines shall conform to the following minimum requirements. One (1) sprinkler head per fire area when supplied from a one (1) inch domestic service. Two (2) sprinkler heads per fire area when supplied from a one-and-one-half (1 1/2) inch domestic service. Four (4) sprinkler heads per fire area when supplied from a two (2) inch domestic service. A fire area shall be a confined area which may contain hazardous substances. Limited service sprinklers in any one (1) building shall be limited to a maximum of twenty (20) sprinklers. No sprinkler supply lines shall be attached to the domestic service before the domestic water meter.

Section 12. Emergency.

This being an ordinance necessary for the preservation of the public peace, health and safety, it is hereby declared to be an emergency ordinance under Article IV, Sections 19 and 20 of the Charter of the City of St. Louis, and it shall take effect and be in full force immediately upon its passage and approval by the Mayor or its adoption over his veto.

Approved: June 25, 2010

St. Louis City Ordinance 63136

FLOOR SUBSTITUTE

BOARD BILL NO. [93] 306

INTRODUCED BY ALDERMAN Robert Ruggeri

An ordinance pertaining to water rates; finding, determining and declaring that an increase in certain water rates is necessary for certain purposes; defining certain terms; repealing certain parts of Section Four of Ordinance 59524, which constitute part of and are presently codified in the Revised Code, St. Louis 1980 Anno.: Section 4 (23.16.040); (23.16.050); (23.16.070); (23.16.080); (23.18.070); (23.20.020); (23.20.030); and (23.20.040), all having as their subject water rates and charges; enacting in lieu thereof one new section with eight subsections; with an emergency clause.

BE IT ORDAINED BY THE CITY OF ST. LOUIS AS FOLLOWS:

Section One. It is hereby found, determined and declared by the Board of Aldermen of the City of St. Louis that increases in certain water rates as hereinafter provided, are necessary to provide revenues sufficient for the maintenance and operation of the City's waterworks and water facilities and at least to pay the running expenses of the Water Division, and for the payment of the outstanding St. Louis Water Revenue Bonds, Series 1985 as required by Article XIII Section 11 of the St. Louis City Charter and for the payment of the principal of and interest on all additional outstanding Water Revenue Bonds when such bonds become due.

Section Two. The following parts of Section One of Ordinance 59524, numbered and referred to in such section as new sections of the Revised Code, presently codified in the Revised Code, St. Louis, 1980 Anno., as part of Ordinance 59524, and any other Ordinances or parts thereof inconsistent herewith, are hereby repealed: Section 4 (23.16.040); (23.16.050); (23.16.070); (23.16.080); (23.18.070); (23.20.020); (23.20.030); and (23.20.040).

Section Three. As used in this Ordinance, First Year means the year beginning on the effective date of this Ordinance, and Second and Third Years mean the years beginning on the second and third anniversaries of such effective date, respectively.

Section Four. The following water rates are hereby imposed:

(a) Flat rate for domestic use.

For the use of water for domestic family residence, flat or apartment purposes, for periods of three months in advance:

FIRST YEAR

Room charge, each \$1.85
Water closet, each \$7.22
Baths, each \$6.06
Shower, separate from bath, each \$6.06

SECOND YEAR

Room charge, each \$2.09
Water closet, each \$8.16
Baths, each \$6.85
Shower, separate from bath, each \$6.85

THIRD YEAR

Room charge, each \$2.24
Water closet, each \$8.73
Baths, each \$7.33
Shower, separate from bath, each \$7.33

Sprinkling charge of \$.124 per front foot shall be assessed each three month billing period for lawn sprinkling and other outside uses the first year after the effective date of the ordinance. This charge shall be \$.140 per foot the second year and \$.150 per front foot the third year.

(c) Temporary use of flat rate.

In those cases where users are not eligible for flat rates as enumerated in Section 23.16.060, and where existing water service is unmetered as of the effective date of the ordinance, it shall be the duty of the Water Commissioner, as soon as possible, to install or set the required meter. In the interim, bills shall be rendered to these customers on the basis of the appropriate flat rates in effect prior to the passage of this ordinance, plus twenty-two percent (22%) thereof.

(d) Swimming pool charge.

1. A flat water rate shall be applied where a swimming pool, pond or other pool is found on the premises having a capacity of more than one hundred (100)

cubic feet and less than two thousand (2,000) cubic feet which are not metered under Section 23.16.060. Said flat rate shall be payable for periods of three (3) months in advance as follows:

FIRST YEAR

Swimming pool, pond or other pool having a capacity of more than 100 but less than 501 cubic feet,\$11.36.

Swimming pool, pond or other pool having a capacity of 501 but less than 1,001 cubic feet,\$15.90.

Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501 cubic feet,\$20.45.

Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000 cubic feet,\$24.99.

SECOND YEAR

Swimming pool, pond or other pool having a capacity of more than 100 but less than 501 cubic feet,\$12.84.

Swimming pool, pond or other pool having a capacity of 501 but less than 1,001 cubic feet,\$17.97.

Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501 cubic feet,\$23.11.

Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000 cubic feet,\$28.24.

THIRD YEAR

Swimming pool, pond or other pool having a capacity of more than 100 but less than 501 cubic feet,\$13.74.

Swimming pool, pond or other pool having a capacity of 501 but less than 1,001 cubic feet,\$19.23.

Swimming pool, pond or other pool having a capacity of 1,001 but less than 1,501 cubic feet,\$24.73.

Swimming pool, pond or other pool having a capacity of 1,501 but less than 2,000 cubic feet,\$30.22.

2. After such flat rates have been paid for a minimum of one (1) year, the user making said payments shall have the option to pay at meter rates as provided by Chapter 23.18. Such options shall be exercised in writing on forms supplied by the Water Commissioner. The user shall provide for the meter by having a meter box and set up installed on the service in accordance with Section 23.04.210 at its own expense.

(e) Rates.

1. Water furnished to all metered connections shall be assessed for use per three-month billing period, or less, at rates equal to the combined sum of a readiness-to-serve charge and a quantity charge.

2. The readiness-to-serve charge shall be determined by the size of the meter and shall be as follows:

FIRST YEAR

Meter

5/8" \$11.71

3/4" 13.63

1" 17.28

1 1/4" 24.99

2" 36.34

3" 70.43

4" 124.94

6" 238.51

8" 363.45

10" 499.76

SECOND YEAR

Meter

5/8" \$13.23

3/4" 15.40

1" 19.53

1 1/4" 28.24

2" 41.06
3" 79.59
4" 141.18
6" 269.52
8" 410.70
10" 564.73

THIRD YEAR

Meter

5/8" \$14.16
3/4" 16.48
1" 20.90
1 1/4" 30.22
2" 43.93
3" 85.16
4" 151.06
6" 288.39
8" 439.45
10" 604.26

3. Should water be furnished through two (2) or more separate meters, the readiness-to-serve charge shall be the combined total of the readiness-to-serve charge for each meter. Should water be furnished through a single meter containing two (2) or more metering elements, the readiness-to-serve charge shall be that for a single meter the size of the largest metering element.

4. The quantity charge shall be at the following rates:

For first 25,000 cu. ft. per billing, per 100 cu. ft., \$0.87 the first year, \$0.98 the second year and \$1.05 the third year.

For next 1,975,000 cu. ft. per billing, per 100 cu. ft., \$0.68 the first year, \$0.77 the second year and \$0.82 the third year.

Over 2,000,000 cu. ft. per billing, per 100 cu. ft., \$0.51 the first year, \$0.58 the second year and \$0.62 the third year.

5. Should water be furnished through two (2) or more meters or through a single meter with two (2) or more metering elements, the quantity charge shall be based on the combined total of all water used as indicated by all registers.

(f) Special rates in hospitals or charitable institutions.

1. The quantity charge for the use of water by any hospital or charitable institution in the City which shall make written application to the Water Commissioner, signed by its president, secretary or managing officer, asking for a special charity rate, and stating that free service is furnished to not less than ten (10) percent of its patients, members or inmates, and giving special details of the management as are necessary to show the philanthropic nature of the institution shall, if approved by the Water Commissioner, be assessed for the water used in the institution at a special rate of \$0.45 per one hundred cubic feet the first year, \$0.51 the second year and \$0.55 the third year.

2. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 23.18.070.

(g) School rates.

1. The quantity charge for the use of water by any public parochial, interparochial schools, public libraries, and art museum of the City shall be assessed for the water used in the institution at a special rate of \$0.51 per one hundred cubic feet the first year, \$0.58 the second year and \$0.62 the third year.

2. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 23.18.070.

(h) Zoological parks.

1. The quantity charge for the use of water by zoological parks established pursuant to Section 90.580 to 90.650 Revised Statutes of Missouri 1978 shall be \$0.45 per one hundred cubic feet the first year, \$0.51 the second year and \$0.55 the third year.

2. In addition to the quantity charge, there shall be assessed each billing period a readiness-to-serve charge for each meter in accordance with the schedule set forth in Section 23.18.070.

Section Five. Sums of money due and owing for water or water service, or rights or privileges arising before the effective date of this Ordinance with respect to water or water services, shall not be retroactively affected by this Ordinance.

Section Six. This being an ordinance necessary for the preservation of the public peace, health and safety, is hereby declared to be an emergency ordinance under Article IV, Sections 19 and 20 of the Charter of the City of St. Louis, and it shall take effect and be in full force on July 1, 1994 immediately upon its passage and approval by the Mayor.

Legislative History				
1ST READING	REF TO COMM	COMMITTEE	COMM SUB	COMM AMEND
02/25/94	02/25/94	PU		
2ND READING	FLOOR AMEND	FLOOR SUB	PERFECTN	PASSAGE
03/04/94			03/11/94	03/18/94
ORDINANCE	VETOED		VETO OVR	
63136				

FISCAL NOTE
BOARD BILL NUMBER 25 AS AMENDED ON THE FLOOR

Preparer's Name Cheryl Campbell

Phone Number or Email Address (will be available publicly) campbellch@stlouis-mo.gov

Bill Sponsor Alderman Michael Browning

Bill Synopsis:	<i>An ordinance amending City water rates and related charges, including flat rates, metered rates, special institutional rates, affordability rates for qualifying residential customers, water turn-on and delinquency shutoff charges, and fire protection connection charges; establishing annual Water Division reporting requirements; and containing an emergency provision.</i>
Type of Impact:	<i>Indeterminate (Special Fund Revenue and Administrative Impact)</i>
Agencies Affected:	<i>Water Division; Collector of Revenue.</i>

SECTION A
Does this bill authorize:

- An expansion of services which entails additional costs beyond that approved in the current adopted city budget? ___ Yes ___ X No
- An undertaking of a new service for which no funding is provided in the current adopted city budget? ___ Yes ___ X No
- A commitment of city funding in the future under certain specified conditions? ___ X ___ Yes ___ No
- An issuance of bonds, notes and lease-purchase agreements which may require additional funding beyond that approved in the current adopted city budget? ___ Yes ___ X No
- An execution or initiation of an activity as a result of federal or state mandates or requirements? ___ Yes ___ X No

- A capital improvement project that increases operating costs over the current adopted city budget? ☐ Yes ☒ No
- A capital improvement project that requires funding not approved in the current adopted city budget or that will require funding in future years? ☐ Yes ☒ No

If the answer is yes to any of the above questions, then a fiscal note must be attached to the board bill. Complete Section B of the form below.

SECTION B

- Does the bill require the construction of any new physical facilities? ☐ Yes ☒ No
 - If yes, describe the facilities and provide the estimated cost:

- Is the bill estimated to have a direct fiscal impact on any city department or office? ☒ Yes ☐ No
 - If yes, explain the impact and the estimated cost:

The Board Bill increases water rates and related service charges administered by the Water Division, which would affect Water Division Special Fund revenues. The bill also establishes administrative requirements related to affordability-rate eligibility determinations, recertification, repayment agreement monitoring, enforcement, and annual reporting obligations.

However, the Board Bill does not provide customer usage assumptions, customer counts, anticipated affordability-rate participation, delinquency activity projections, staffing plans, revenue estimates, or administrative cost projections; therefore, the total fiscal impact cannot be determined from the Board Bill language.

- Does the bill create a program or administrative subdivision? ☐ Yes ☒ No
 - If yes, then is there a similar existing program or administrative subdivision? ☐ Yes ☐ No
 - If yes, explain the how the proposed programs or administrative subdivisions may overlap:

- Describe the annual operating, equipment, and maintenance costs that would result from the proposed bill, as well as any funding sources:

The bill may result in increased annual operating costs associated with implementation and administration of revised rate structures, affordability eligibility review, customer compliance monitoring, and required reporting activities. No equipment or maintenance costs are identified in the Board Bill language.

Funding would be supported through Water Division revenues generated by the revised rates and related service charges; however, the Board Bill does not provide sufficient detail to quantify the amount.

Complete the chart below to list the total estimated expenditures required of the City resulting from the proposed board bill and any estimated savings or additional revenue.

Financial Estimate of Impact on General Fund			
Fiscal Impact	<u>Year 1 (current)</u>	<u>Year 2</u>	<u>Year 3</u>
Additional Expenditures	\$0	\$0	\$0
Additional Revenue	\$0	\$0	\$0
Net	\$0	\$0	\$0
Financial Estimate of Impact on Special Funds			
Fiscal Impact	<u>Year 1 (current)</u>	<u>Year 2</u>	<u>Year 3</u>
Additional Expenditures	Indeterminate	Indeterminate	Indeterminate
Additional Revenue	Indeterminate	Indeterminate	Indeterminate
Net	Indeterminate	Indeterminate	Indeterminate

- Describe any assumptions used in preparing this fiscal note:

This fiscal note was prepared based on review of the language contained within the Board Bill. It assumes that the revised water rates, service charges, and related administrative requirements would be implemented through existing Water Division operations and applicable water-related special funds. The Board Bill does not provide customer volume assumptions, revenue projections, staffing estimates, or implementation cost estimates; therefore, fiscal impact cannot be quantified from the Board Bill language.

- List any sources of information (including any City officials, agencies, or departments) used in preparing this fiscal note:

This fiscal note was prepared based on review of the language contained within the Board Bill.

- Have the financial estimates of this bill been verified by the City Budget Division?
____Yes X No
 - If yes, by whom? _____ .